

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2022-008247

BETWEEN:

MR AND MRS SIMON ALDRIDGE

Appellant

- and -

MR TIMOTHY CRAWFORD

Respondent

RESPONDENT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Respondent contends that the boundary is as shown on his title plan, alternatively that he has acquired title to the disputed strip by adverse possession.

B. RELEVANT FACTS

2. The Respondent has maintained the disputed strip as part of his garden since purchasing in 1998.

3. The fence was present when the Respondent purchased and he has maintained it continuously since.

4. The Respondent and his predecessors have possessed the disputed strip for more than 12 years before 2003.

5. The Appellants and their predecessors never objected to the fence position.

6. The Respondent's use has been open, continuous and adverse.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:

- Land Registration Act 2002
- Limitation Act 1980, s.15

D. SUBMISSIONS

8. The Respondent acquired title by adverse possession before 13 October 2003.

9. Alternatively, the boundary has been established by long acquiescence.

10. The Appellants' predecessors accepted the fence line as the boundary.

11. It would be inequitable to require removal of the fence after such long possession.

E. AUTHORITIES

12. The following authorities are relied upon:

- J A Pye (Oxford) Ltd v Graham [2002] UKHL 30
- Zarb v Parry [2011] EWCA Civ 1306
- Dowse v City of Bradford Metropolitan Council [2020] UKUT 202

F. RELIEF SOUGHT

13. The Respondent respectfully requests that this Court:

- Dismiss the claim
- Alternatively, declaration of possessory title
- Costs

David Roberts KC

James Clarke

11 June 2022

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